



File No.: EXP202205570

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by the CANARY ISLANDS HEALTH SERVICE (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection, dated February 9, 2023, and based on the following

FACTS

FIRST: On February 9, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection, in file EXP202205570, by virtue of which it was agreed to impose on the CANARY ISLANDS HEALTH SERVICE, for an infringement of Article 5.1.f) of the GDPR, classified under Article 83.5 of the GDPR, a warning sanction and for an infringement of Article 32 of the GDPR, classified under Article 83.4 of the GDPR, another warning sanction, and it was required to implement, within three months, the necessary corrective measures to adapt its actions to the personal data protection regulations, to prevent similar incidents from occurring in the future, such as the installation of multifunction printers with secure printing, as well as to inform this Agency within the same period about the measures adopted.

This resolution, which was notified to the appellant on February 13, 2023, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), and supplementary to Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, the following was recorded:

“FIRST: On May 9, 2022, the complainant filed a complaint with the Spanish Agency for Data Protection (AEPD), in which he expressed his disagreement with the receipt for his signature of a document titled Notification of Admission to Surgical Waiting List, which contained the personal data of another patient.

SECOND: Upon reviewing the documentation provided and which is incorporated into the file, it is noted that a document titled Notification of Admission to Surgical Waiting List, which includes the personal data of another patient, has been signed by the complainant, allowing unauthorized access by a third party.

THIRD: The respondent acknowledges that the incident subject to the complaint was due to human error in collecting the documents from the printer and states that the installation of multifunction printers with secure printing is being carried out at the involved hospital.”

THIRD: The appellant submitted, on March 8, 2023, to this Spanish Agency for Data Protection, a reconsideration appeal, basing it primarily on the omission of the assessment of the allegations made in the Proposal for Resolution: the Resolution was issued without taking into account the allegations reflected in the document submitted by registration, on January 23, 2023.

The mentioned document of allegations, submitted by registration on January 23, 2023, is attached.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

In relation to the statements made by the appellant, the following should be noted.

The appellant in his appeal stated that the Resolution was issued without taking into account the allegations reflected in the document submitted by registration on January 23, 2023.

He also states that the Canary Islands Health Service does comply with the principle of data confidentiality, as well as with the other principles established in Article 5 of the GDPR, and that technical and organizational measures have been adopted to safeguard the information against possible threats and that additional reinforcement measures are being implemented. From the detailed information, it is inferred that the reason for the complaint was an isolated and specific incident caused by human error, which only affected one person who is not part of this procedure. The complainant has not suffered any harm since his data has not been communicated to third parties nor has any of his rights been violated.

Therefore, since the allegations presented by the appellant were not taken into account due to an error, and in order to avoid the respondent's defenselessness in exercising his right to make the appropriate allegations, it is deemed appropriate to order the

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retroaction of the proceedings to the appropriate procedural moment, the moment of presentation of the allegations made to the proposed resolution.

“In this way, the defenselessness with legal-constitutional significance occurs only when the interested party is unjustifiably prevented from seeking judicial protection of their legitimate rights and interests or when the violation of procedural or formal rules results in the deprivation of the right to defense, with the consequent real and effective harm to the interests of the affected party by being deprived of their right to argue, prove, and, where applicable, to reply to opposing arguments” (STC 48/1986, April 23, STC 58/1989, March 16, among many others), defenselessness that does not occur if the one who denounces it has placed themselves in such a situation.

III

Conclusion

In the present case, along with the appeal for reconsideration, new relevant documentation has been provided regarding the matters raised.

The action taken by this Agency, as previously described, demonstrates that the resolution issued is subject to annulment for the reasons provided in art. 48 LPACAP and specifically, for those identified in paragraphs 1 and 2 of the aforementioned article, relating to the infringement of the legal order and the formal defect of not taking into account the allegations presented, which cause the defenselessness of the sanctioned subject.

The retroaction of the proceedings, as a consequence of the committed defect, means that the acting Administration must revert the procedure to the moment of the presentation of the allegations made on January 23, 2023, to proceed with their evaluation.

IV

Late Resolution

Due to reasons related to the functioning of the administrative body, therefore, not attributable to the appealing party, as of the date of this document, the mandatory pronouncement of this Agency regarding the present appeal has not been issued.

In accordance with the provisions of art. 24 of the LPACAP, the meaning of administrative silence in the procedures for challenging acts and provisions is dismissive.

Nevertheless, and despite the time elapsed, the Administration is obliged to issue an express resolution and to notify it in all procedures regardless of their initiation form, as provided in art. 21.1 of the aforementioned LPACAP.

In cases of dismissal due to administrative silence, the express resolution after the expiration of the term will be adopted by the Administration without any binding effect on the meaning of the silence, as provided in art. 24.3 of the same law.

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Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ACCEPT the appeal for reconsideration filed by the CANARY ISLANDS HEALTH SERVICE, against the Resolution of this Spanish Agency for Data Protection, issued on February 9, 2023, in file EXP202205570, in procedure PS/00418/2022, in the sense of ANNULING it and ordering the proceedings to be reverted to the moment of presentation of the allegations made on January 23, 2023.

SECOND: TO NOTIFY this resolution to the CANARY ISLANDS HEALTH SERVICE.

In accordance with the provisions of article 50 of the LOPDPGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with art. 48.6 of the LOPDPGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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